

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Emmitt Sklar	Team: Squad #05	CCRB Case #: 202105748	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 09/19/2021 5:00 PM	Location of Incident: § 87(2)(b) (D'Agostino Supermarket)		18 Mo. SOL 3/19/2023		Precinct: 19
Date/Time CV Reported Tue, 09/21/2021 9:39 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 09/24/2021 11:56 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Frank Saez	01119	964748	019 PCT
2. LT Benjamin Bellingeri	00000	934474	019 PCT
3. PO Francesca Mosomillo	20316	968023	019 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Ashim Biswas	04140	970418	019 PCT
2. PO Robert Sagendorf	12058	963734	019 PCT
3. PO Timothy Burke	05052	945536	019 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Frank Saez	Abuse: Police Officer Frank Saez threatened to arrest § 87(2)(b)	A . Exonerated
B . PO Francesca Mosomillo	Abuse: Police Officer Francesca Mosomillo threatened to arrest § 87(2)(b)	B . Unfounded
C . LT Benjamin Bellingeri	Abuse: Lieutenant Benjamin Bellingeri threatened to arrest § 87(2)(b)	C . Unfounded

Case Summary

On September 21, 2021, § 87(2)(b) filed this complaint over the phone with IAB, generating original log #2021-20998. The CCRB received the complaint on September 24, 2021.

On September 19, 2021, at approximately 5 p.m., § 87(2)(b) had a dispute with staff at a D'Agostino supermarket at § 87(2)(b) in Manhattan, and a manager called 911 to report that § 87(2)(b) was trespassing. § 87(2)(b) also called 911. § 87(2)(b) spoke to multiple officers in front of the store. Police Officer Frank Saez of the 19th Precinct threatened to arrest § 87(2)(b) (Allegation A: Abuse of Authority, exonerated). Police Officer Francesca Mosomillo of the 19th Precinct allegedly threatened to arrest § 87(2)(b) (Allegation B: Abuse of Authority, unfounded). Lieutenant Benjamin Bellingeri, then assigned to the 19th Precinct, also allegedly threatened to arrest § 87(2)(b) (Allegation C: Abuse of Authority, unfounded). The officers directed § 87(2)(b) to leave and she did so.

The investigation obtained BWC footage from Lt. Bellingeri, PO Saez, PO Mosomillo, PO Biswas, PO Burke, and PO Sagendorf (Board Review 01-06, summarized in Board Review 07-09). All references to video evidence below refer to the timestamp in the video player, not to any on-screen clock embedded in the footage itself.

Lt. Bellingeri has since been reassigned to the Candidate Assessment Division Character Assessment Section.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Frank Saez threatened to arrest § 87(2)(b)

It is undisputed that the managers of the supermarket had previously banned § 87(2)(b) from the store, that a manager told her to leave and that she was trespassing before officers arrived on the date of the incident, and that the manager relayed that same information to the officers when they arrived.

§ 87(2)(b) recounted that PO Saez entered the store and asked her to step outside with him, and she alleged that he told her two or three times, “We’re going to arrest you for trespassing” (Board Review 10).

PO Saez’s BWC footage, beginning at 01:30, confirms that the manager told him, “My boss told me he’s banned from the store” (Board Review 02). The footage also shows another employee told § 87(2)(b) “Yes, you’ve been banned from the store.” At 4:52, PO Saez tells § 87(2)(b) “Do you want to be arrested right now? ‘Cause you’ll be arrested for trespassing.”

It was not necessary to interview officers to reach a disposition for this allegation.

NY CLS Penal Law § 140.05 states, “A person is guilty of trespass when she knowingly enters or remains unlawfully in or upon premises” (Board Review 12).

§ 87(2)(g)

it is recommended that Allegation A be closed as exonerated.

Allegation (B) Abuse of Authority: Police Officer Francesca Mosomillo threatened to arrest § 87(2)(b)

Allegation (C) Abuse of Authority: Lieutenant Benjamin Bellingeri threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that PO Mosomillo and Lt. Bellingeri both also told her that she faced arrest if she did not leave (Board Review 10).

The BWC footage shows that neither PO Mosomillo nor Lt. Bellingeri ever threatened to arrest § 87(2)(b). At 10:13 in PO Saez's BWC, PO Mosomillo says, "You have to leave. You can't stand in front of here. You have to go" (**Board Review 02**). Lt. Bellingeri says at 8:36, "The next time you go in there, you're gonna get in trouble, all right?" Lt. Bellingeri never specifically says that she will be arrested or mentions the potential of her being arrested.

It was not necessary to interview officers to reach dispositions for these allegations.

§ 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation A-B** be closed as **unfounded**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to four CCRB complaints and has been named as a victim in five allegations (**Board Review 11**):
 - § 87(2)(b)
- Lt. Benjamin Bellingeri has been a member of the NYPD for eight years and has been a subject in four CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)
- PO Frank Saez has been a member of the NYPD for four years and this is the first CCRB complaint to which he has been a subject.
- PO Francesca Mosomillo has been a member of the NYPD for two years and is a subject in one ongoing CCRB complaint and one allegation. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint could not be referred for mediation.
- As of November 5, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this complaint (**Board Review 13**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: _____ 5 _____

Investigator:	Emmitt Sklar	Inv. Emmitt Sklar	December 9, 2021
	Signature	Print Title & Name	Date

Squad Leader:	Daniel Giansante	IM Daniel Giansante	December 9, 2021
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date